

**IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA
THE SUB-REGISTRY OF MOSHI
AT MOSHI**

PC. CRIMINAL APPEAL NO. 24614 OF 2025

(Arising from the decision of the District Court of Same at Same dated 19th September, 2025 in Criminal Appeal No. 000018167 and originating from the decision of Kisiwani Primary Court at Same in Criminal Case No. 16 of 2025)

AGASTINO NGARABA:.....APPELLANT

VERSUS

UZIMA ELIA MSANGI:.....RESPONDENT

JUDGMENT

15th July & 31st August, 2026

A. P. KILIMI, J.:

At the Primary Court of Kisiwani within the District of Same ('the trial court'), the appellant herein was arraigned and charged with the offence of theft contrary to sections 258 and 265 of the Penal Code, Cap. 16 of the Revised Laws.

It was alleged that on 18th February 2025 at about 09:00 hours, at Ikongwe hamlet, Mwembembaga Ward, Same District in Kilimanjaro Region, the appellant unlawfully did steal iron sheets (mabati) from a building used for religious worship situated at Ikongwe Hamlet, which formed part of the estate properties in Probate and Administration Cause No. 6 of 2024 then pending before the Kisiwani Primary Court. The appellant denied the charge, whereupon the case proceeded to a full hearing. The trial court found the appellant guilty of the offence charged and sentenced him to pay a fine of Tshs. 300,000/= or, in default, to serve six months' imprisonment. He unsuccessfully appealed to the District Court of Same, and being undeterred by the first appellate court decision, he is in this court praying his appeal be allowed, and the judgments of the two lower courts be quashed and set aside.

Briefly, according to the record and evidence which led to the appellant's conviction before the trial court, the respondent herein, who was the complainant at the trial court, testified that she was appointed as one of the

administrators of the estate of the late Elia Abraham Msangi in Probate and Administration Cause No. 6 of 2024 by the Kisiwani Primary Court. In the course of performing her duties of identifying and collecting the deceased's estate properties, she discovered that one of the deceased's houses, which was being used for religious worship, had been stripped of its iron sheets. Upon making inquiries, the administrators came to learn that it was the appellant herein who had removed the said iron sheets and that he had stored them at a building used by one Esta Lazaro. Upon further follow-up, the administrators went to Esta Lazaro's residence, where she informed them that she had been requested to keep the iron sheets by the appellant, who was the person who had instructed her to store them there.

Later, the appellant arrived at the site and confirmed that he was indeed the person who had stored the iron sheets at Esta Lazaro's premises. However, he informed the administrators that the premises where the iron sheets were stored would not be opened for them because he was merely a caretaker, having been instructed by the members of Ikongwe community to keep those iron sheets for safe custody, thus denying stealing the same, and he told them if they wanted the matter resolved, they should report him to the authorities. Consequently, the respondent proceeded to report the matter, resulting in the institution of the criminal case against the appellant.

The respondent's evidence was corroborated by her fellow administrator, one Paulo Elia Msangi. In the end, the trial court was satisfied that the prosecution had proved the case against the appellant beyond reasonable doubt and consequently convicted and sentenced him as stated above. Aggrieved by both the conviction and sentence, the appellant appealed to the District Court of Same in Criminal Appeal No.000018167/2025, which upheld the decision of the trial court.

The appellant has approached this Court on appeal, premising his grievances on the following grounds of appeal: **one**, that both the subordinate Courts erred in law and facts for failure to properly evaluate evidence adduced by the parties, thereby reaching the wrong and unjust decision. **Two**, that both the trial court and the first appellate court erred for not finding that the offence

of theft which the appellant was charged with was not proved beyond reasonable doubt. **Three**, that the first appellate Court made a gross error for considering evidence of the accused person in finding whether the complainant/ respondent proved her case. **Four**, that the 1st appellate court erred in leaving most of the appellant's grounds of appeal undecided. **Five**, that the trial court erred in law and fact for relying on facts which were not evidence of the parties in making his decision.

When this matter was called for hearing, the appellant was represented by Mr Erasto Kamani, learned Advocate, while the respondent appeared in person unrepresented, their rival arguments proceeded orally, and I will refer to them on respective grounds whenever necessary.

I have carefully considered the submissions made by both parties, together with the record of the proceedings before the trial court and the first appellate court. The main issue for determination is whether this appeal has merit.

Having carefully evaluated the grounds of appeal and the submissions made in support thereof and against. Conveniently, I find ground numbers one, two and three; both revolve around one issue as to whether the prosecution proved its case beyond reasonable doubt. In the premises, I will argue them collectively.

Mr Kamani submitted that the burden of proving the offence charged rested throughout on the prosecution. He relied on sections 117(1) and (2) of the Evidence Act, Cap. 6 R.E. 2023, read together with section 3(1) of the same Act. The respondent in this case argued against the appeal and submitted that the two courts were correct in their decisions.

I have carefully examined the record of the trial court as well as that of the first appellate court. Upon such examination, I am of the considered view that, had the trial court properly evaluated and scrutinised the evidence adduced by the prosecution, it would have arrived at the conclusion that the offence of theft had not been proved against the appellant to the required standard.

It is a trite law for a conviction for the offence of theft to be sustained, the prosecution must establish, among other things, the existence of a thing capable of being stolen and that the accused fraudulently took or converted such thing without a claim of right and this is per the provisions of the Penal Code Cap 16 in section 258 and 265. In the present case, there is no dispute that the iron sheets in question constituted property capable of being stolen. The crucial question, however, is whether the prosecution proved that the iron sheets belonged to the deceased's estate and that the appellant fraudulently took them without a claim of right.

The learned first appellate court raised a pertinent question regarding the ownership of the iron sheets and whether there was sufficient evidence establishing that they belonged to the deceased's estate. Upon my own evaluation of the record, I find that no cogent evidence was adduced to establish that the iron sheets allegedly taken by the appellant were the property of the deceased, the late Elia Abraham Msangi.

The respondent at the trial court testified that in the course of collecting and identifying the properties forming part of the deceased's estate, she discovered that a building used for religious worship had been stripped of its iron sheets. It was further stated, both in her testimony and in the particulars of the charge, that the iron sheets were among the properties listed as forming part of the deceased's estate in Probate and Administration Cause No. 6 of 2024 before the Primary Court of Kisiwani.

However, apart from that assertion, no evidence was adduced to establish the deceased's ownership of the particular iron sheets. No evidence was presented to demonstrate when, how, or by whom the iron sheets were acquired, or otherwise to establish that they were the property of the deceased or his estate. The mere fact that the iron sheets were allegedly included in a list of properties forming part of the deceased's estate does not in my view automatically establish ownership of those iron sheets for purposes of proving the criminal charge of theft.

In the circumstances of this matter, the prosecution was required to prove all the essential ingredients of the offence beyond reasonable doubt. The burden

did not shift to the appellant to prove that the iron sheets were not the property of the deceased. In the absence of such evidence establishing the ownership of the iron sheets, a material element of the offence remained unproved. From the above endeavours, the determination of the criminal responsibility of the appellant could not have been fully resolved by the trial court without first resolving the issue of ownership of the said iron sheets.

Moreover, the evidence on record does not, in my view, establish that the appellant took the iron sheets fraudulently and without a claim of right. The evidence was to the effect that the appellant had taken the iron sheets to the premises of Esta Lazaro for storage and that, when confronted, he acknowledged having placed them there. The appellant's explanation that he had taken the iron sheets for storage was not in itself sufficient evidence of fraudulent taking, particularly in the absence of proof that the iron sheets belonged to the deceased's estate and that the appellant had no lawful claim or authority in respect thereof. In the circumstances, the allegation against the appellant remained a mere suspicion.

In criminal proceedings, suspicion, however strong, is not enough to convict an accused person. The prosecution must remove all manner of doubt to sustain conviction. (See **Mohamed Said Matula v. Republic** [1995] T.L.R. 3.) The prosecution was required to establish by evidence and not merely that the appellant had possession of or had moved the iron sheets, but that he had fraudulently taken property belonging to another without a claim of right. That essential requirement was not sufficiently established in the present case.

In the light of the above discussion, I am therefore satisfied that the prosecution at the trial court failed to prove the essential ingredients of the offence of theft; hence, the case was not proved beyond reasonable doubt. Therefore, the conviction of the appellant was unsafe. Furthermore, I find that the determination of the three grounds of appeal as above is sufficient to dispose of the appeal and find no need to consider and determine the remaining ground of appeal.

In the result, this appeal is allowed. The conviction and sentence imposed by the trial court and affirmed by the first appellate court are both hereby quashed and set aside forthwith.

It is so ordered.

DATED at **MOSHI** this 31st day of August, 2026.



X

JUDGE
Signed by: A.P. KILIMI

Court: Judgment delivered today, this 31st day of August, 2026, in the presence of the appellant and respondent, both in person.

Sgd. A.P. KILIMI
JUDGE
31/8/2026